ORDINANCE NO. 494

AN ORDINANCE ESTABLISHING A PENALTY FOR DISPOSING OF SOLID WASTE, INCLUDING BUT NOT LIMITED TO FOOD OR DRINK CONTAINERS AND OTHER POST CONSUMER OR BUSINESS CONTAINERS, ON THE PROPERTY OF ANOTHER PERSON(S) OR BUSINESS(ES), INCLUDING PROPERTY BELONGING TO THE CITY OF RECTOR, UNLESS AUTHORIZED BY THE OWNER, IN WRITING, TO DO SO.

WHEREAS, the City of Rector has received complaints from its citizens who pay the local fee to a franchise holder for garbage pickup and are unable to utilize their own receptacles (those for solid waste including but not limited to food or drink containers and other post consumer or business containers, hereinafter "trash") due to other unauthorized persons dumping their trash in the said receptacles: and

WHEREAS, the City of Rector has experienced a problem with the City receptacles, particularly in the City Park, filling up with private citizens trash being dumped in them which does not allow room for the trash that is actually generated in the park and facilitated littering.

WHEREAS, the Arkansas General Assembly passed Act 833 of 1977 known as the "Litter Control Act" in an attempt to remedy the above described situation,

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF RECTOR, ARKANSAS AS FOLLOWS:

SECTION 1: That pursuant to Act 833 of 1977 it will be a unclassified misdemeanor and a fine will levy for each individual piece of trash placed in a receptacle which belongs to a citizen of Rector or business owner who has not authorized that person to use the receptacle in writing, further anyone caught dumping their private trash

in a City receptacle will be charged with an unclassified misdemeanor and each individual piece of trash may constitute a separate offense.

SECTION 2: That it will be prima facia evidence of guilt if a name appears on a piece of trash that the person it names is the offender.

SECTION 3: That the penalty for each separate offense shall be not less than $100.00 plus court costs nor more than $500.00 plus court costs or up to 100 hours of community service if the Court finds that the offender is financially unable to pay a fine.

EMERGENCY CLAUSE: It is determined by the City Council of Rector, Arkansas that tax/utility paying citizens are unduly burdened by the amount of illegal dumping that the City is experiencing and therefore an emergency is hereby declared to exist and this ordinance is immediately necessary for the preservation of the public peace, health and safety and shall become effective immediately after its passage and publication.

CITY OF RECTOR, ARKANSAS

Ron Kemp

RON KEMP, MAYOR

ATTEST:

Kenneth R Burns

KENNY BURNS, CITY CLERK